



POLICE DEPARTMENT

CHAN

-----X
In the Matter of the Disciplinary Proceedings :

- against - :

FINAL

Police Officer Sean Sawyer :

ORDER

Tax Registry No. 934155 :

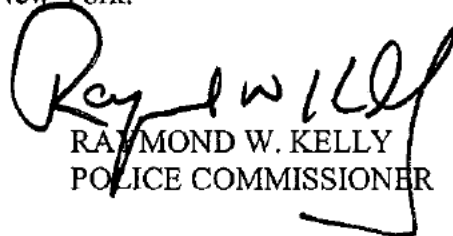
OF

Military and Extended Leave Desk :

DISMISSAL
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Police Officer Sean Sawyer, Tax Registry No. 934155, Shield No. 1160, Social Security No. ending in [REDACTED] having been served with written notice, has been tried on written Charges and Specifications numbered 83438/07, as set forth on form P.D. 468-121, dated October 23, 2007, and after a review of the entire record, having pleaded Guilty, has been found Guilty as Charged.

Now therefore, pursuant to the powers vested in me by Section 14-115 of the Administrative Code of the City of New York, I hereby DISMISS Police Officer Sean Sawyer from the Police Service of the City of New York.


RAYMOND W. KELLY
POLICE COMMISSIONER

EFFECTIVE: 08/04/2009

COURTESY • PROFESSIONALISM • RESPECT



POLICE DEPARTMENT

July 16, 2009

-----X
In the Matter of the Charges and Specifications : Case No.83438/07
- against - :
Police Officer Sean Sawyer :
Tax Registry No. 934155 :
Military and Extended Leave Desk :
-----X

At: Police Headquarters
One Police Plaza
New York, New York 10038

Before: Honorable Claudia Daniels-DePeyster
Assistant Deputy Commissioner - Trials

APPEARANCE:

For the Department: Adam Sheldon, Esq.
Department Advocate's Office
One Police Plaza
New York, New York 10038

For the Respondent: Stephen Worth, Esq.
Worth, Longworth, & London, LLP
111 John Street – Suite 640
New York, NY 10038

To:

HONORABLE RAYMOND W. KELLY
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NEW YORK 10038

COURTESY • PROFESSIONALISM • RESPECT

The above-named member of the Department appeared before me on June 8, 2009, charged with the following:

1. Said Police Officer Sean Sawyer, assigned to Narcotics Borough Queens, while off-duty, on or about October 21, 2007, in New York County, after becoming involved in an off-duty firearm discharge, did fail and neglect to request the response of the patrol supervisor and/or call for an ambulance and render assistance to injured, if necessary.

P.G. 212-29, Page 2, Paragraph 1(a)- FIREARMS DISCHARGE BY
UNIFORM MEMBERS OF THE SERVICE

2. Said Police Officer Sean Sawyer, assigned to Narcotics Borough Queens, while off-duty, on or about October 21, 2007, in New York County, after becoming involved in an off-duty firearm discharge, did fail and neglect to safeguard the scene.

P.G. 212-29, Page 2, Paragraph 1(b)- FIREARMS DISCHARGE BY
UNIFORM MEMBERS OF THE SERVICE

3. Said Police Officer Sean Sawyer, assigned to Narcotics Borough Queens, while off-duty, on or about October 21, 2007, in New York County, after becoming involved in an off-duty firearm discharge, did fail and neglect to promptly notify the desk officer, precinct of occurrence.

P.G. 212-32, Page 1, Note- OFF-DUTY INCIDENTS INVOLVING
UNIFORM MEMBERS OF THE SERVICE

4. Said Police Officer Sean Sawyer, assigned to Narcotics Borough Queens, while off-duty, on or about October 21, 2007, in New York County, did engage in conduct prejudicial to the good order, efficiency or discipline of the Department in that said Police Officer did leave the scene of a firearms discharge in which said Police Officer did discharge his authorized off-duty 9mm., Glock Model #26, Serial # [REDACTED].

P.G. 203-10, Page 1, Paragraph 5- PROHIBITED CONDUCT

5. Said Police Officer Sean Sawyer, assigned to Narcotics Borough Queens, while off-duty, on or about October 21, 2007, in New York County, did fail and neglect to properly safeguard his 9mm., Glock Model #26, Serial # [REDACTED].

P.G. 204-08, Page 2, Paragraph 7- FIREARMS-GENERAL REGULATIONS

The Department was represented by Adam Sheldon, Esq., Department Advocate's Office, and the Respondent was represented by Stephen Worth, Esq.

The Respondent, through his counsel, entered a plea of Guilty to the subject charges. A stenographic transcript of the mitigation record has been prepared and is available for the Police Commissioner's review.

DECISION

The Respondent, having pleaded Guilty, is found Guilty as charged.

SUMMARY OF EVIDENCE IN MITIGATION

The Respondent was appointed to the Department in January of 2004. He recalled that on October 21, 2007, he worked from 10:00 am to 6:00 pm and was assigned to Queens Narcotics as a "ghost." He explained that a ghost functions in an undercover capacity.

As a result of his undercover duties on October 21, the Respondent drank half a bottle of Heineken beer. This was something that he was authorized to do. Upon finishing his shift that day, the Respondent testified that he signed out at about 6:45 pm and began to travel home towards Manhattan. Before arriving home, the Respondent made two stops—one at Blockbuster and another at Duane Reade. He arrived home at around 8:30 pm and later left again at approximately midnight. The Respondent indicated that he did not drink any alcohol between the time he arrived home and the time that he left.

Upon leaving his house, the Respondent said he went to 20 Street and Fifth Avenue to meet a friend of his. He arrived there at about 12:30 am and his friend arrived at around 1:00 am. The Respondent and his friend spent about an hour in Manhattan "looking for a spot to hang out." He did not have anything to drink during this time.

Eventually, the Respondent and his friend went to a bar in Queens, "Gas Light" in his [REDACTED]. They remained there until closing. The Respondent admitted to drinking two rum and Cokes while at the bar. Thereafter, the Respondent drove his friend home to Woodside. He left her house at around 4:45 am and began the trip home.

In order to get to his house on [REDACTED], the Respondent said he went over the Triborough Bridge and traveled to the southbound FDR Drive. He eventually encountered another motorist, Jason Tirado, who was also traveling southbound on the FDR. The Respondent noted that traffic was congested and slow-moving, as police were forcing cars to exit at 116 Street. The Respondent testified that as he traveled in the right lane he "began to see zebra stripes." At one point, Tirado attempted to "get into" the Respondent's lane. The Respondent sounded his horn and gave Tirado a gesture because "there was no room for him to get in." Tirado, however, ultimately "made his way in front of" the Respondent.

After exiting the FDR onto 116 Street, the Respondent said that Tirado's front-seat passenger was hanging out the side of the vehicle while vomiting. As the Respondent traveled directly behind Tirado, he noticed three occupants in his car: the driver, the front seat passenger and a back seat passenger. At one point, Tirado "began to shift over to the right as though he was pulling over." The Respondent accelerated past him and continued on. Thereafter, the Respondent noticed Tirado's car in his rear view mirror speeding up, followed by his headlights turning off. He testified that he thought that this was "kind of strange. His lights went off and that he began to speed up behind me."

Tirado pulled parallel to the Respondent's car, on his driver's side. He began to curse at him while his front seat passenger was still hanging out the window. The Respondent said that Tirado screamed, over his front seat passenger, "What the fuck are you doing? You know, you just cut me off." The Respondent replied to him, "What are you talking about? I let you in front of me on the FDR, on the highway. I let you in front of me." As the two continued on 116 Street, Tirado told the Respondent, "I'm going to knock you out...I will knock you out." At 116 Street and First Avenue, at a red traffic light, the Respondent said that Tirado stated, "All right, nigger. Whatever." The Respondent proceeded through the red traffic signal.

After proceeding through the red light, the Respondent traveled north on First Avenue. He heard the sound of screeching tires and then noticed Tirado's vehicle on his passenger side. He told the Respondent, "I got something for you. I will introduce you to my friend. I will introduce you to Mr. Ruger." He believed this to be a reference to a Ruger handgun. Tirado reached down "near his passenger and then he began to come up." Believing that Tirado was "coming out" with a weapon, the Respondent said he flinched and pulled his weapon "up and shot twice" with his right hand. He noted that his weapon, prior to this point, was holstered in an inside-the-pants style holster. The Respondent said his firearm was an "off-duty" Glock capable of holding about 11 rounds of ammunition.

The Respondent testified that Tirado's car had tinted windows. He did not know where the two shots he fired went and did not believe he had struck anyone in the car. The Respondent explained that he heard nothing indicating that he had "hit something,"

there was no screaming or glass shattering, and after he fired the two shots, Tirado's vehicle accelerated and pulled off to the right lane. His brake lights then illuminated.

After firing his weapon, the Respondent placed it underneath his leg. He proceeded to make a left turn on 119 Street and traveled west. He explained that he did not stay at the scene because he believed that there would be a shoot out between him and Tirado. The Respondent traveled to Fifth Avenue to 110 Street to Central Park West and then to 102 Street.

Regarding the charge of failing to safeguard the scene, the Respondent testified that he did not do so because he felt the scene "was still active." He testified that he had already been approached twice by Tirado while driving and expressed that when he saw his brake lights, he felt another confrontation was impending.

The Respondent did not summon an ambulance because he did not believe that anyone had been hit. He testified, "I didn't know if anyone was struck. There was no need for me to call." He did not see Tirado's car again thereafter.

Eventually, the Respondent arrived home at a little after 6:00 am. As he parked his vehicle, he noticed damage on his side mirror, on the driver's side. He specified that the mirror was missing "a huge chunk of plastic that was missing from the cover." The Respondent figured that he shot his mirror. He did not believe, at this point, that he had struck any individuals. The Respondent went inside his house and pondered what had just occurred. He then went to sleep. The Respondent said that he did not think to call any member of the Department or a Department supervisor about the shooting and said that he panicked.

That afternoon, the Respondent awoke at about 3:00 pm. Later that night, around 11:45 pm, while watching the news on television, he saw a broadcast of the incident that he had been involved in. The news report made mention of the street that the Respondent had been on as well as a description of his car. The Respondent told his wife about what had happened and she suggested that he contact a friend who worked at the precinct nearby. He left his house to hail a cab and in the process, spotted a patrol car at Central Park West and 102 Street, [REDACTED]. The Respondent flagged the patrol car down and told a sergeant inside that he had been involved in a shooting the previous night. The sergeant asked him if he had his weapon and he replied in the affirmative. The Respondent surrendered his weapon to the sergeant and an ambulance was summoned for him. He indicated that he owns two weapons—an off-duty weapon and his service weapon; the service weapon was in his locker at his command. The Respondent said that he did not reload his weapon after the shooting. The ambulance transported him to St. Luke's Hospital where he was treated and released for hypertension and high blood pressure. He was not admitted and subsequently went to the precinct of occurrence, the 25 Precinct.

After the incident with Tirado and subsequent to arriving home, the Respondent testified that he unloaded his gun, took the magazine out and put it in a safe. He retrieved it the next day when he woke up.

On cross-examination, the Respondent acknowledged that he is charged with failing to safeguard his weapon. He was asked if he knew that he would be consuming alcohol when he went out to meet his friend. He testified, "We didn't know exactly where or what we were going to do. I knew we were going to hang out." He said he was

not certain if he was going to be drinking alcohol. The Respondent was then confronted with his response from his September 4, 2008 Official Department Interview where he was questioned about why he stored his firearm under the seat in his car, where he indicated that he did so because he knew he was going to be drinking. The Respondent clarified his answer by testifying that he put the gun under the seat only after he arrived at a location that he knew he would drink alcohol at. He affirmed that when he left his house, he did not know he would be drinking. The Respondent admitted that it was his practice to store his gun under his seat when he went to a bar and further admitted he knew that this violated the Patrol Guide.

The Respondent was questioned about his training. He acknowledged that he was trained that deadly physical force is used as an absolute last resort. He was also aware that firing a weapon at someone was dangerous and knew that a bullet does not always strike the intended target. The Respondent agreed that missing a target has the potential to cause property damage or injury to a bystander. Similarly, he affirmed that he knew what a ricochet was—that bullets could bounce off of hard objects and strike other things.

The Respondent now knows that Tirado was driving a purple two-door Honda. He never saw Tirado or his passengers speaking on a cell phone, nor was he aware if anyone in the car had a cell phone. As a police officer, the Respondent admitted that he is trained to administer emergency medical treatment to injured persons. Administering and summoning medical attention for an injured person is a mandated duty under the Patrol Guide, and the Respondent agreed that a firearms discharge is a situation that would require calling for medical attention. The Respondent agreed that he did not render any emergency medical attention because he did not see any need to. Despite

having a working cell phone the night of the shooting, he did not call for any assistance. Additionally, he did not call anyone on his home phone when he arrived home. The Respondent explained that he was not thinking clearly, he panicked and also did not believe that he had shot anyone. He said, "I was like I said I wasn't thinking correctly. I panicked. I thought the guys were still after me and they would see my car."

The Respondent affirmed that he drove from Fifth Avenue to the west side to get home. As he "got a little farther up" he did not see anyone behind him and he looked in his rear view mirror and did not see anyone. He agreed, at this point, he knew that no one was following him. When asked if there was anything stopping him from calling 911 or anyone at that time, the Respondent said, "Just my—just my frame of thought at that time."

When the Respondent first encountered Tirado, when he cut in front of him on the FDR, the Respondent indicated that he did not feel threatened. He did not believe Tirado had a gun at that point and simply thought it was three kids in a car. He noted that Tirado was "being a little sarcastic" in smirking at him when he merged in front of him. It was not until Tirado turned his headlights off and accelerated up to the Respondent that he became concerned.

The Respondent felt that everyone in Tirado's car, including the driver, was intoxicated.

After exiting the FDR, the Respondent reiterated that he headed westbound. He acknowledged that there is a traffic signal at Pleasant Avenue, prior to First Avenue. The Respondent said that Tirado turned his headlights off prior to Pleasant Avenue, after he drove his car ahead of Tirado's. He had not observed any threatening gestures yet but

found it strange that Tirado turned his lights off and sped up to his car. He affirmed that Tirado pulled parallel to his vehicle and began to curse at him. The Respondent agreed that at this point, Tirado had not threatened him or mentioned a weapon. Subsequent to Tirado turning his lights off and speeding up to the Respondent's car, he removed his gun from his holster and put it between his legs. He did this prior to any indication of a weapon in Tirado's car.

Following the dispute at Pleasant Avenue, the Respondent went to First Avenue and 116 Street. Tirado pulled up to him again, screeching his tires. He denied that Tirado was driving recklessly. The Respondent's weapon was still underneath his leg; he explained that he removed the gun from the holster because it is difficult to draw it from the sitting position and he wanted it readily available should he need it.

The Respondent acknowledged that he had his shield on him the night of the shooting. He never attempted to identify himself to Tirado. He agreed that a police officer has a duty to try to take some type of police action in observing someone committing a crime.

The Respondent reiterated that he unholstered his weapon "[j]ust in case." He restated that he never tried to use his shield to identify himself as a police officer before or after being threatened by Tirado. The Respondent agreed that he instead proceeded past a red light to get away from the situation. He believed that doing this would diffuse the situation and end the confrontation. When asked if there was anything stopping him from using his cell phone at this time to report the incident, the Respondent testified, "At that point when I was still driving I was trying to get away." Tirado followed after the Respondent.

With respect to his training, the Respondent acknowledged that the Department provides extensive training on the subject of firearms. The Respondent agreed that he was trained in how to use a firearm and in the use of deadly physical force. He was aware that deadly physical force is used as a last resort and used in order to protect yourself or someone else from immediate danger. The Respondent said that he recalled his training on the night of the shooting. He affirmed that he had been trained to be cautious in using a firearm and agreed, again, that bullets do not always strike their intended target. The Respondent agreed that in order to carry a firearm, one has to demonstrate proficiency every six months by scoring at least 78 out of a possible 100. He has successfully demonstrated firearms proficiency four or five times in his career and has never failed in doing so. Prior to being involved in the shooting, the Respondent said that he last demonstrated firearms proficiency a few months prior.

The Respondent testified that warning shots are not permissible under any circumstance. He agreed that this was so because the risk of damaging property or injuring someone was too great. The shots fired by the Respondent were not warning shots.

The Respondent was asked, "What are the instructions you are given when you do believe that your life is in immediate danger or there is an immediate threat? What instructions are you given with regard to taking shots with regard to using your weapon?" He replied, "Basically to take cover if it's possible, to retreat or notify if it's possible at the time." He agreed that the training was not to shoot at someone's leg or shoulder. Rather, it is to shoot for center mass in order to nullify the threat. The Respondent acknowledged that in order to do so, it is necessary to visualize the target.

On continued questioning regarding his training, the Respondent recalled that he was trained not to put his finger on the trigger of a firearm until the last moment. This prevents shooting prematurely. He also recalled that he was trained that when one holds a weapon and thrusts their hand forward, it indicates that they are about to fire. The Respondent relied on this training on the evening of the shooting. He admitted that he was trained about what to do after using a firearm, and agreed that the steps to be taken are specified in the Patrol Guide. In response to being asked if a patrol supervisor must be summoned after a firearm is used, the Respondent testified that he was in the “capacity” of an undercover officer at the time of the shooting. He said, “I was an undercover which means certain, of course, rules and procedures were intact, but the capacity I was under when I was doing it at the time.” The Respondent thereafter denied that undercover officers do not have to follow the rules of firearm discharges and acknowledged that he was aware of the rules that must be followed after a police officer utilizes their firearm. He indicated that a patrol supervisor must be called “when possible.” The Respondent reiterated that he had a cell phone and agreed that nothing stopped him from calling a supervisor except for his state of mind. He also agreed that an ambulance is supposed to be summoned in the event that someone could be injured.

The Respondent contended that safeguarding the scene of a shooting is “acting in that capacity as a uniformed officer...” He indicated that he was an undercover narcotics officer and was “looking at it in a different capacity.” He did not agree that it was okay to leave a shooting scene and have someone else safeguard it later; he said, “Of course, you make notification. You call when possible.” The latter did not occur in this case.

At the time of the shooting, the Respondent testified that his car was a "couple of inches" away from Tirado's car. He was not right next to him and he specified that he was a bit higher up than Tirado. The Respondent was shown a series of photographs (see Department's Exhibit ["DX"] 1 through 5). He identified DX 1 as a photograph of his car and DX 2 as a photograph of Tirado's car.

The Respondent reiterated that when the shooting occurred, Tirado had pulled up behind him on First Avenue and was a few inches away from his car. Tirado reached down and "punched out," indicating to the Respondent that he had a firearm. The Respondent was able to see inside of Tirado's car because he was looking out his open window and claimed that there was sufficient illumination for him to see via street lights, despite some of Tirado's windows being tinted. The Respondent testified that he was positive that there were three occupants in Tirado's car, including the intoxicated front seat passenger leaning over. The Respondent made his observations through the open front seat passenger window of Tirado's car. In firing his weapon, the Respondent agreed that he applied his brake, reached over and fired. He did not aim; he specified that he fired at the car twice. Both cars were parallel at this time.

Aside from Tirado, the Respondent indicated that he knew the front seat passenger was sitting between them. The Respondent said that he "knew he was drunk." The backseat passenger was sitting almost to the passenger side of the vehicle.

The Respondent agreed that the reason he fired his weapon was because he felt that there was an immediate threat to his life, a threat from Tirado. He further agreed that this threat was not coming from anyone else. The Respondent indicated that he was not shooting at Tirado's passengers. He intended to shoot Tirado because he believed that he

was going to be shot. When asked if he aimed at the car or the person causing the threat, the Respondent clarified that he did not aim. He testified, "I wasn't aiming—I'm sorry. I keep hearing aiming. I wasn't aiming. When I flinched and had my shoulder up and that's when I let off two rounds. I didn't have the time to aim and focus on this person. I knew that's where he was in the direction that I shot toward him in that direction."

The Respondent affirmed his testimony on direct examination that he did not believe his two shots struck anyone. He was then confronted with his testimony that he was only a few feet away, claimed to be able to see his target, and the fact that there were three people in a small car. He again said that he did not believe it was possible that his two shots struck anyone. The Respondent explained, "The position how I shot. When I [shot] we weren't parallel. That's why I—when I hit my brake, my shoulder was up and my hand I was looking away so it wasn't a pretty looking shot, is what I'm trying to say." The Respondent denied that he disregarded his training when he fired his weapon. He said that he was not going to "wait to see" if he knows a threat exists.

When asked whether he was looking at the direction of Tirado's car when he fired, the Respondent indicated in the affirmative, saying, "I was where I was shooting and who I was shooting at." He was subsequently asked, "Did you look at the person you were shooting at when you fired your firearm?" and he replied, "At that point, I couldn't see. We weren't parallel because that's when I hit my brake and two rounds." The Respondent reiterated that despite the circumstances already testified to, he did not believe there was the slightest possibility he had shot someone. Additionally, after seeing the damage to his car, he did not believe he had struck Tirado's car.

The damage to the Respondent's car as depicted in the photograph (see DX 4) shows damage to the left side view mirror of his car. The Respondent said he noticed this damage as he was driving home. Despite noticing this, however, he testified that he still did not believe either of the two shots struck Tirado's car.

Subsequent to the shooting, Tirado's car pulled in front of the Respondent's and then "went to the right." He then saw Tirado's brake lights illuminate and he made a left turn and went home. While the Respondent stated that he saw cars after the shooting, he did not see Tirado's. He clarified that he believed someone was chasing him, but later admitted that in looking in his rear view mirror, he did not see anyone chasing him. The Respondent did not believe this incident was road rage.

Despite believing that Tirado had a gun, the Respondent was questioned about why he took no police action. He contended that he did, testifying, "[m]y police action was to get away. I did take police action." He said that an undercover police officer is supposed to leave the scene.

Upon arriving home, the Respondent did not take any investigative steps. He did not examine his vehicle for bullet holes or look for shell casings. He affirmed that he went inside his house, unloaded his firearm, thought about what had happened and then went to sleep. The Respondent did not believe that the incident would be reported to the police and similarly, did not believe that the police would be looking for a perpetrator.

While he admitted that he was driving the vehicle in DX 1 and described in the news report, the Respondent denied that a description of a perpetrator had been broadcast on the news report. He admitted that the two backseat passengers would not have had a

problem getting a look at him as they were inches apart. The Respondent saw the front seat passenger clearly.

The Respondent affirmed, again, that the reason for not reporting the incident was his emotional state. It was not until later when it occurred to him to report it. He admitted that he considered that nothing would come of the incident and there would be no repercussions for discharging his firearm.

After waking up later that day, the Respondent reiterated that he walked to the store. He said he was carrying his firearm.

On examination by the Court, the Respondent said that it is possible that his vehicle was in the position depicted in RX B when he fired the second shot. He said that his car was "a lot closer" and more parallel when the first shot was fired. The Respondent noted that he "hit the brake" when he fired the second shot.

The Respondent said that he had been working as an undercover for about a year and a half on October 21, 2007. Prior to working as an undercover, the Respondent said he worked at the 78 Precinct for about two years. Prior to that, he worked at the 67 Precinct for six months.

When he fired the two shots, the Respondent said that the passenger was no longer hanging outside of the window. He was "sitting back" in his seat. He was unable to tell if the seat was reclined. The Respondent believed that he arrived home a little after 6:00 am.

The parties stipulated that this matter was presented to a New York County grand jury who returned no true bill.

On continued examination by the Court, the Respondent said after waking up at around 3:00 pm, he went to the store. Later that evening, he heard the news regarding the incident he was involved in. He left his house, planning to get a cab to go to the 23 Precinct. In the process, he saw a patrol car and flagged down the officer and sergeant inside.

PENALTY

In order to determine an appropriate penalty, the Respondent's service record was examined. See Matter of Pell v. Board of Education, 34 N.Y.2d 222 (1974). The Respondent was appointed to the Department on January 20, 2004. Information from his personnel record that was considered in making this penalty recommendation is contained in the attached confidential memorandum.

The Respondent has been found Guilty, after pleading Guilty in mitigation, to the charges arising out of a shooting that he was involved in on the evening of October 21, 2007. While the propriety of the shooting is not charged or even in question, the charges in this case, when taken together, are very serious and serve to paint an extremely disconcerting and alarming picture.

In sum, the Respondent's involvement in an early-morning traffic dispute with a civilian, Jason Tirado, culminated in a shooting by him in which Tirado was fatally wounded. The Respondent failed to remain at the scene of the incident or make any prompt notifications to a police precinct, 911, a patrol supervisor or any member of this Department. After the shooting, he continued his drive home and retired to his bed for the evening. It was not until 19 hours later after the Respondent saw a television broadcast of the incident on the evening news that he decided to report his involvement.

Throughout the course of this proceeding, the Respondent offered a series of what can only be described as bizarre explanations for his conduct in failing to report his involvement in this incident; all of which were unworthy of belief. His explanations ranged from not being required to remain at the scene due to his undercover "capacity," to claiming that he did not believe that it was possible for him to have shot anyone even though he fired his weapon at a car filled with multiple occupants. Another assertion he made was that this incident was an aberration as a result of his emotional state. While this may certainly be true, it demonstrates that the Respondent is unsuited to deal with a police situation. The fact that he fired into a car without aiming underscores that he was unable to follow his police training at a critical moment.

Throughout the cross-examination by the Assistant Department Advocate, it became clear that subsequent to the shooting, there was ample opportunity for the Respondent to summon help or at least notify someone of the incident. In fact, the Respondent testified that he was in possession of his cell phone during this entire period of time. Perhaps most galling of the Respondent's actions was that he just went home and elected to go to sleep.

Counsel for the Respondent asserted in his summation that the Department's penalty recommendation of termination was causally related to Tirado's death. This argument is not well taken. Even assuming that Tirado had never been shot, we are left with a police officer who fired two shots at a vehicle he knew to be occupied by three people and who failed grossly in his duties. Namely, the Respondent failed to remain at the scene where he discharged his firearm; he failed to render assistance; he failed to safeguard the scene; he neglected to notify the desk officer, precinct of occurrence; and

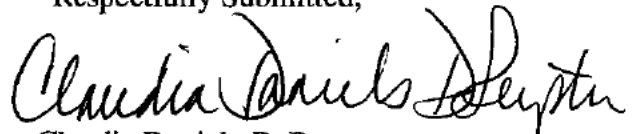
he failed to safeguard his firearm. The Respondent is held to a higher standard than that of an average civilian. He is expected to comport his conduct, both on and off-duty, to the Patrol Guide, numerous provisions of which he has pled guilty to violating. The Respondent's actions have demonstrated that he is not capable of performing in the manner expected of him by this Department during a police incident. He has also shown that he is not suited to be a member of the service who carries a firearm.

While an unusual case in this forum, the circumstances here are similar to Disciplinary Case No. 79590/04. In that case, a six-year police officer was terminated for failing to remain at the scene of a homicide where his friend was stabbed by an individual. He also failed to call 911, request a patrol supervisor or render any medical aid. Instead, he went home.

I found none of the Respondent's testimony to be mitigating or persuasive as to the penalty. The Department has requested termination. I concur.

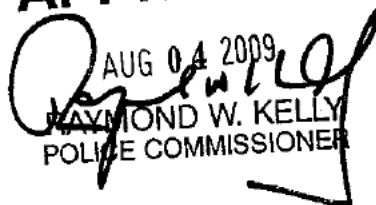
In light of the foregoing, the only appropriate recommendation that this Court can make is that the Respondent be DISMISSED from his position as a police officer with the New York City Police Department.

Respectfully Submitted,



Claudia Daniels-DePeyster
Assistant Deputy Commissioner-Trials

APPROVED



AUG 04 2009
RAYMOND W. KELLY
POLICE COMMISSIONER

**POLICE DEPARTMENT
CITY OF NEW YORK**

From: Assistant Deputy Commissioner - Trials
To: Police Commissioner
Subject: CONFIDENTIAL MEMORANDUM
POLICE OFFICER SEAN SAWYER
TAX REGISTRY NO. 934155
DISCIPLINARY CASE NO. 83438/07

The Respondent was rated 3.0—"Competent" on his last performance evaluation available which is for 2004. He has not received any medals to date in his career.

[REDACTED]
[REDACTED]. The Respondent has no prior, formal disciplinary record

For your consideration.


Claudia Daniels-DePeyster
Assistant Deputy Commissioner – Trials